

School: Heltwate School, Peterborough

Date: 19/04/2021

Report: Remote consultation

DPE: Linda Mortimer

School member: Mike Nelson, Business Manager

Consultation details 7.12.20

Heltwate use EPM for their HR & Payroll service and RM E1 for the financial software management

- Overview of Article 30 of the GDPR and how this relates to Data Controllers
- Demonstration of the Record of Processing Tool with specific focus on financial management with discussion on how this could be used to inform the organisation's Risk Register
- Website updates including best practice areas
- Review of the school's existing policies, including the Data Protection Policy and Privacy Notice
- Review of common breaches
- Review of training – Heltwate uses an external company, Every, for their GDPR training and therefore there is no record of training completed on DPE Knowledge Bank. DPE recommend that a GDPR refresher is taken every 2 years.

Consultation details 19.4.21

Review of existing policies

The school's Privacy Notice has been updated to include Covid 19 information

Third parties used: the school uses Earwig for assessment, attainment and tracking

Remote teaching and learning has been delivered via Class Dojo (to set work)

Action: Please update the Privacy Notice to include a detailed list of third parties with whom you share personal information. This can be completed under a separate appendices.

The school has a policy in place for remote learning, with lessons recorded and live lessons delivered via Google Meet.

The school has set protocols in place for remote learning, online meetings and a user agreement. These are shared with parents and students as well as staff.

Communication with DPE

The school has recently received advice on detailed consent from the core DPE team and would appreciate our representation at a future governors meeting.

Developments

The school has been considering the introduction of the online safeguarding system, My Concern (One Team Logic)

The Business Manager has thoroughly researched the company's Privacy Notice, Data Storage arrangements, Data Sharing Agreement and Acceptable Use Agreement. He has also reviewed the training provided by the

company, has a detailed implementation plan, recognizing any risks that may be involved. Initial set up will be implemented by Wand and the system is hosted by Microsoft on an Azure platform.

The Business Manager is considering the benefits of moving away from Google to Microsoft for the school's cloud computing and using One Drive and Sharepoint. LM will populate Helwate area on Knowledge Bank with the relevant RoPs relating to moving to cloud computing, for the Business Manager to review. If further questions arise, LM suggests that a meeting is arranged for other members of the DPE team to attend and offer advice and guidance.

Priorities from the consultation are detailed below:

1. **Update the GDPR Policy and Privacy Notices** to the latest DPE version or amend existing to include COVID-19 related information. There are now separate Privacy Notices for: Workforce, General and Students and there is now a child friendly notice. Ideally you will now update your documentation to the latest versions as there have been several revisions.
2. **Training:**
 - **Review training completed and follow up with staff yet to complete training**
 - **Identify any additional training modules that can be completed; work away from school and data breaches etc**
3. **Publication scheme:** The school has the option of adopting DPEs model publication scheme (please refer to section 3)
4. **Internal audit walks:** Suggested the school could also complete their own end of day walk and report findings back to staff (raising awareness)
5. **Record of Processing (RoP):** Linda Mortimer has worked with Mike Nelson on the 7.12.20 to work through a Finance related. LM will liaise with Mike to make a further appointment in late summer half term to work through other RoPs.
6. **Compliance action best practice area/checklist and governor best practice area:** The compliance best practice area/checklist can be used to manage progress, print off reports for Trustees and support consultants during visits/remote consultations.

Links and additional guidance in order of priority actions detailed below:

1. GDPR policy update and Privacy notice updates

The latest GDPR policy and Privacy Notices can be located from the compliance best practice area:

<https://dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance>

Regardless of adopting the very latest documents your current privacy notice and policy should now include sections for COVID-19 - refer to the July 17 update: <https://dataprotection.education/index.php/best-practice-library/best-practice/coronavirus>

2. Setting staff up for e-learning training and mini training guides

You should now be reviewing training i.e. GDPR refresher, data breaches and work away from school. You can check which staff have or have not completed the various modules by selecting the reports from your dashboard: <https://dataprotection.education/manager-reports?view=reports>

Users can be set up on the system by adding individually or importing as a group: <https://dataprotection.education/student-list/users>) Kalina at DPE (client support) is here to help you and can be contacted for support at: kalina.voyvodova@dataprotection.education

All staff should now have completed some form of data protection training.

The dashboard now has mini training videos for many of the main areas, including data breaches and SARS. There is also a data breach and SAR best practice area where all the information is now situated.

3. Publication scheme

The publication scheme has now been updated and as a public authority you should have one. **The updated guidance can be obtained from:** <https://dataprotection.education/news-top/news/83-best-practice-updates/182-model-publication-scheme-amendments-improvements-and-updates>

Updated publication schemes can be obtained from: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/freedom-of-information>

4. Audit walk

As we are unable to visit at present it is worth considering completing your own internal walk. You can check against previous report findings to identify improvements or areas that still need to be improved. You can also use the best practice guides to support the process: <https://kb.dataprotection.education/best-practice-library/documents/drip-feeds/57-dpe-quick-reference-guid>

DPE will also be providing a live online audit walk that will be available shortly

5. Record of Processing (RoP)

The RoP will start to be used for your record of processing. DPEs methodology for rolling out the RoP can be found here: <https://kb.dataprotection.education/news-top/news/94-siteupdates/175-record-of-processing-rop-supporting-information> The RoP can be used for risk assessments (DPIAs), especially where new technologies are being introduced. Always email: dpo@dataprotection.education for support if needed.

Next steps:

We will work with you and demonstrate how the RoP can be adapted to reflect your school's individual practice.

Step 1 - a general introduction to the RoP tool with a brief overview of the generic process relating to financial/management of the school. This has been provided at the online meeting on the 7.12.20 with Mike Nelson. A further meeting will be arranged.

Step 2- a more in depth look at the RoP with key process owners and how completing the master lists will ensure the school reflects the technical measures and procedures it has in place to safeguard personal data.

Step 3 – online workshops and group sessions to support schools with further individual sessions as needed.

Note: a number of reporting functions i.e. risk reports will shortly be available.

6. Compliance checklist and governance

A reminder that the **compliance checklist** can be used to support ongoing compliance, supporting consultants during remote sessions and for monitoring with governors. Reports can be printed from the compliance checklist: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/commitment-to-compliance> There are many more checklists that you'll find useful.

In addition, the governor best practice and terms of reference can also be used to support compliance if needed: <https://kb.dataprotection.education/index.php/best-practice-library/best-practice/governors-and-data>

7. Q and As

The school has asked if members of the DPE team can be present at a governors meeting later this term.